

SUNDEW TOWNSHIP DEVELOPERS PVT. LTD.

CONSTRUCTION CONTRACT AGREEMENT — COMMUNITY CENTER PROJECT

This Construction Contract Agreement is made and executed on this 4th day of March, 2027, at Bengaluru, Karnataka.

BETWEEN

Sundew Township Developers Pvt. Ltd., having its registered office at 11th Floor, Sundew Corporate Park, Electronic City Phase 2, Bengaluru, Karnataka – 560100, PAN: AABCS8821N (hereinafter referred to as the “Owner”),

AND

BuildRight Contractors Pvt. Ltd., having its registered office at 22, Industrial Layout, Whitefield, Bengaluru, Karnataka – 560066, PAN: AABCB5678K (hereinafter referred to as the “Contractor”).

The Owner and the Contractor are hereinafter collectively referred to as the “Parties.”

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. SCOPE OF WORK

The Contractor shall carry out the construction of a community center and recreational facility of approximately 12,000 square feet within the Owner’s township development at Electronic City Phase 2, Bengaluru, as per the drawings, specifications, and Bill of Quantities annexed hereto as Annexure A. Construction shall commence within seven (7) days of the date of this Agreement and shall be completed on or before 10th December, 2027.

2. CONTRACT VALUE AND PAYMENT TERMS

The total contract value payable by the Owner to the Contractor for the entire scope of work shall be Rupees Forty-Four Lakhs Fifty Thousand (Rs. 44,50,000/-), exclusive of GST, which shall be levied at 18% as applicable under the CGST/SGST Act.

The Contractor shall raise a single invoice for the full contract value upon completion of the work. The Owner shall make payment against such invoice within twenty-five (25) days of the invoice date. The Owner shall pay the Contractor a mobilization advance of ten percent (10%) of the total contract value prior to commencement of work at site.

3. LIABILITY

The aggregate liability of the Contractor arising out of or in connection with this Agreement shall not exceed an amount equal to the total contract value payable in the twelve (12) months preceding the event giving rise to such liability.

4. TERMINATION

The Owner shall be entitled to terminate this Agreement at any time upon giving the Contractor twenty-one (21) days’ written notice.

The Contractor may, at its discretion, suspend or terminate this Agreement should the Owner default in payment of any undisputed sum for a continuous period exceeding thirty (30) days from its due date.

5. DELAY AND COMPENSATION FOR DELAY

Should the Contractor fail to complete the work within the stipulated period for reasons solely attributable to the Contractor, the Contractor shall pay to the Owner compensation for delay calculated at one percent (1%) of the contract value per week of delay, subject to a maximum aggregate compensation not exceeding eight percent (8%) of the total contract value.

Where delay is occasioned due to the Owner’s failure to hand over clear site possession, or delay in obtaining statutory approvals which are the Owner’s responsibility, the completion period shall stand extended accordingly, without any liability on the Contractor.

6. DEFECT LIABILITY PERIOD

The Contractor shall be responsible for rectifying, at its own cost, any defects in workmanship or materials that manifest within a period of eighteen (18) months from the date of handover of the completed structure.

7. VARIATIONS TO SCOPE

Any variation or additional work beyond the scope defined in Annexure A shall be undertaken by the Contractor only upon receipt of written instructions from the Owner, and the rate for such variation shall be mutually agreed and confirmed in writing prior to execution of the additional work.

8. ESCALATION IN COST OF MATERIALS

The contract value stated herein is fixed and firm, and no escalation on account of any increase in the price of cement, steel, or any other construction material shall be payable to the Contractor under any circumstances during the currency of this Agreement.

9. JURISDICTION AND DISPUTE RESOLUTION

Any dispute arising out of or in connection with this Agreement shall be referred to arbitration under the Arbitration and Conciliation Act, 1996, the seat of arbitration being Bengaluru, Karnataka.

10. CONFIDENTIALITY

The Parties agree to maintain confidentiality with respect to all commercial and technical information exchanged under this Agreement. This obligation shall continue for a period of thirty (30) months from the date of completion of the work.

11. SITE ACCESS

The Owner shall ensure that the Contractor is granted uninterrupted access to the site throughout the duration of the project for the purposes of carrying out the work.

12. ENTIRE AGREEMENT

This Agreement, along with its Annexures, constitutes the entire understanding between the Parties and supersedes all previous discussions, negotiations, and agreements, whether oral or written.

IN WITNESS WHEREOF, the Parties have set their hands on the day, month, and year first above written.

FOR SUNDEW TOWNSHIP DEVELOPERS PVT. LTD. Authorised Signatory: _____

FOR BUILDRIGHT CONTRACTORS PVT. LTD. Authorised Signatory: _____

WITNESSES: 1. _____ 2. _____